

		fn. 9 [“A declaration not signed under penalty of perjury under the laws of California has ‘no evidentiary value’ and can be disregarded.”].) Moving Attorney to give notice.
4	Southern Income Properties, L.L.C. vs. Leisure Pro LTD	<u>Motion for Leave to Amend (re First Amended Complaint)</u> Revised at 2:55 pm, 8/13/26. The court GRANTS Plaintiff SOUTHERN INCOME PROPERTIES, LLC’s unopposed motion for leave to file a proposed First Amended Complaint (FAC). According to the moving papers, Defendants (including the new proposed defendant, LP SCUBA, LLC) have stipulated to the filing of the proposed FAC and Plaintiff has agreed to dismiss an earlier filed unlawful detainer action (<i>Southern Income Properties, L.L.C. v. LP Scuba, L.L.C.</i>, Case No. 30-2024-01425415-CU-UD-CJC), as possession is no longer an issue. The FAC would essentially result in consolidation of related issues into one case. Plaintiff has substantially complied with the procedural requirements for leave to amend under Rule 3.1324 of the California Rules of Court. In sum, the court GRANTS the unopposed motion. Plaintiff may file the proposed First Amended Complaint (attached as Exhibit 1 to Janecek Declaration) no later than five court days from the date of this hearing. Trial date of 2/22/27 to remain. Plaintiff to give notice.
5	Gill vs. Estate of Joan M. Gray	<u>Motion for Leave to Amend (re First Amended Complaint)</u>

The matter was continued from 7/31/26. The court has now considered the timely-filed opposing and reply papers (ROAs 120 and 125).

The court **GRANTS** Plaintiff POLLYANN M. GILL's motion for leave to file a proposed First Amended Complaint ("FAC").

Generally, leave to amend should be liberally granted. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) "[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted].)

Here, Plaintiff seeks leave to add a fourth cause of action for battery against Defendant HAYDEN GRAY (and Doe Defendants) and add a request for punitive damages (among other forms of relief) in connection with the battery cause of action (Niven Decl., Exh. 2.)

If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments usually prevails. Indeed, it could be an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565)

In their opposing papers, Defendants ESTATE OF JOAN M. GRAY, Deceased and HAYDEN GRAY first argue that the motion should be summarily denied because Plaintiff failed to meet with the statutory requirements of Rule 3.1324 of the California Rules of Court. Rule 3.1324 requires that the moving party proffer a supporting declaration stating (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) the reasons

why the request was not made earlier. (Cal. Rules of Ct., rule 3.1324(b).)

Here, Plaintiff proffers a declaration from counsel (Leslie L. Niven) and while the declaration does not clearly address each specific requirement of Rule 3.1324(b), the court finds the declaration substantially complies with Rule 3.1324(b). Moreover, denial of the motion does not appear justified even if a technical defect exists as argued.

Defendants also argue that the motion should be denied because the FAC does not state facts sufficient to constitute a cause of action for battery or support a claim for punitive damages. But as Plaintiff notes, such arguments are more properly addressed by way of a demurrer and/or motion to strike.

Finally, Defendants argue that they will be prejudiced by the filing of the FAC because they will be forced to incur additional expenses in filing a demurrer and/or motion to strike. But “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280.)

In sum, the motion for leave is GRANTED.

Plaintiff may separately file and serve the proposed First Amended Complaint within 5 court days of this ruling.

Plaintiff to give notice.

Upcoming CMC:

In light of the above-ruling and that the case may no longer be at-issue, **the court CONTINUES the Case Management from 8/24/26 to 12/7/26, at 10:00 am in Dept. W8.**

All appearing parties SHALL file and serve a new and timely case management conference statement at least 15 calendar days prior to the continued hearing as required by

		the rules, including California Rules of Court rule 3.725 and Local Rule 369. Plaintiff to give notice.
6	Chan vs. Rhema Net Corporation	<u>Motion to Tax Costs</u> The court GRANTS Plaintiff JOHNSON CHAN's motion to tax or strike prejudgment costs claimed by Defendant(s). Defense counsel filed a Memorandum of Costs Summary and Worksheet (ROAs 135, 137) on 5/8/26. The documents appear to have been filed on behalf of RHEMA NET CORPORATION, who remains an active defendant in this action and has not been deemed a prevailing party. In the opposing papers, defense counsel states that the cost memorandum was intended for Defendant JENNIFER CHANG, who successfully demurred. To the extent the documents were intended for co-defendant Chang, the documents are at best premature as no judgment has been entered in this action. Prejudgment costs must be claimed and contested in accordance with the rules adopted by the Judicial Council or are deemed waived. (Code Civ. Proc., § 1034(a); <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924, 929.) The deadline to file and serve a cost memorandum is the earlier of 15 days after service of notice of entry of judgment, or 180 days after entry of judgment. (See Cal. Rules Ct., Rule 3.1700(a)(1).) As such, the court hereby STRIKES the entirety of the claimed costs at this time, without prejudice to Defendant(s)' possibly claiming these costs after a judgment is entered. The court further notes that a separate judgment relating to Defendant Chang does not appear appropriate. Defendant Chang successfully demurred to the fourth cause of action in the Third Amended Complaint (the

		operative pleading), the only claim asserted against her. (See 4/24/26 Minute Order [ROA 125].) Defendant Chang therefore is no longer a pending defendant in this action. However, a judgment has not yet been entered in Defendant Chang's favor, and the court is not exercising its discretion at this time to render a judgment as to Defendant Chang only. (See Code Civ. Proc., § 579 [trial court has discretion to render judgment against a defendant and allow the action to proceed against others whenever a several judgment is proper].) Plaintiff to give notice.
7	Elliott vs. Thai	<u>Motion to Enter Stipulated Judgment</u> The court DENIES Defendants NAM THANH THAI and TRUNG THANH THAI's Motion to Enter Stipulated Judgment. As explained below, this action is no longer pending and the court did not retain jurisdiction before the action was dismissed by the parties. As such, the court lacks jurisdiction to grant the request. Defendants request that the court enter a stipulated judgment pursuant to the parties' settlement agreement under Code of Civil Procedure section 664.6. (See Zotti Decl., ¶¶ 6 & 8 & Exhs. 1-2.) The settlement agreement contains a clause where the parties agree that this court would retain jurisdiction to enforce the agreement under section 664.6. (<i>Id.</i>, Exh. 1 at § 13.) Importantly, the parties dismissed this action with prejudice over a year-and-a-half ago. (See Request for Dismissal of Complaint with Prejudice, filed by Plaintiff on 2/13/25 [ROA 96] and Request for Dismissal of Cross-Complaint with Prejudice, filed by Cross-Complainants on 2/13/25 [ROA 99].) The parties appear to have used an older version of the Judicial Council "Request for Dismissal" form (CIV-110), when dismissing both the complaint and cross-complaint with prejudice. (ROAs 96 & 99.) The current version of mandatory CIV-110 (revised on 1/1/25) includes a dismissal

without prejudice and with the court retaining jurisdiction under section 664.6. (See current CIV-110, § 1(a)(3).) Here, the parties did not file the current form and check the box for the court to retain jurisdiction.

Nor have Defendants shown that, prior to dismissing this action with prejudice, either party ever made a request to the court to dismiss without prejudice and retain jurisdiction to enforce under section 664.6 of the Code of Civil Procedure. Nor is there any record of the court approving any request to retain jurisdiction upon dismissal under Section 664.6.

Section 664.6 begins, “If parties to pending litigation stipulate ... for settlement ..., the court, upon motion, may enter judgment pursuant to the terms of the settlement.” (Code Civ. Proc., § 664.6(a), emphasis supplied.) Section 664.6 also states, “If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6(a), emphasis supplied.)

Cases interpreting section 664.6 conclude that the language of the statute requires the parties to make an express request to the court to retain jurisdiction prior to dismissal. (See e.g., *Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 439 [“unless the parties presented the trial court with a proper request to retain jurisdiction for purposes of section 664.6 motions, the trial court did not have subject matter jurisdiction over this case when it decided Moran's motions.”]; *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155–1156 [“where a stipulated judgment includes a dismissal, the parties must ask the trial court to retain jurisdiction before the dismissal deprives the court of that jurisdiction.”]; *Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917 [a request must be made to the court to retain jurisdiction and that “request must be express, not implied from other language, and it must be clear and unambiguous.”].)

		Here, while the parties may have had a private agreement that the court retain jurisdiction, the record does not show that the parties ever made an express request to the court to retain jurisdiction prior to the parties’ dismissing this case with prejudice. As such, this court lacks subject matter jurisdiction over this matter. (See, e.g., <i>Wackeen</i>, 97 Cal.App.4th at 437 [“When there is a voluntary dismissal of an entire action, the court's jurisdiction over the parties and the subject matter terminates.”].) The motion is therefore DENIED. Moving Defendants to give notice.
9	Doe vs. Brown	<u>Motions to Compel Further Responses to</u> 1. <u>Special Interrogatories</u> 2. <u>Requests for Production of Documents (RPDs)</u> 3. <u>Requests for Admissions (RFAs)</u> 1. <u>Special Interrogatories</u> The court DENIES in part and GRANTS in part Plaintiff JANE DOE’s motion to compel further responses from Defendant JAMAL BROWN to Plaintiff’s Special Interrogatories (Set One). First, the court notes that it’s not clear which special interrogatories are at issue in Plaintiff’s motion. Plaintiff’s Notice of Motion fails to state whether the motion is directed to any particular interrogatory or to all of the interrogatories contained in Plaintiff’s Special Interrogatories (Set One). (See Not. Of Mot., filed 5/26/26 [ROA 429].) By contrast, the supporting Memorandum of Points and Authorities (“MP&As”) (ROA 430) lists the following under the heading “Specific Deficiencies”: Special Interrogatories, Nos. 1, 4, 5, 6, 8, 10, 13, 14, 15, 17, 18, 20 and 21. The accompanying Separate Statement (ROA 415) also lists Nos. 1, 4, 5, 6, 8, 10, 13, 14, 15, 17, 18, 20 and 21. However, the accompanying Declarations

(ROAs 417 and ROA 423, Exh. B) show an effort to meet and confer as to only the following Special Interrogatories: Nos. 1, 4, 5, 6, 8, 10, 13, and 14.

Given such, it appears to the motion is directed at Special Interrogatories Nos. 1, 4, 5, 6, 8, 10, 13, 14, 15, 17, 18, 20 and 21 and that Plaintiff failed to meet and confer as to Nos. 17, 18, 20 and 21.

Motions to compel further discovery responses must be accompanied by a meet and confer declaration. (Code Civ. Proc., §§ 2016.040, 2030.310(b); 2031.310(b)(2), 2033.290(b)(1).)

As such, the court **DENIES** the motion as to Special Interrogatories, Nos. 17, 18, 20 and 21, for failure to meet and confer as required.

As for Special Interrogatory Nos. 1, 4, 5, 6, 8, and 10, each response appears to be complete and straightforward. As such, the motion is **DENIED** as to these requests.

As for Special Interrogatory Nos. 13 and 14, Defendant does not justify the objections asserted. As such, the motion is **GRANTED as to Nos. 13 and 14**.

2. RPDs

The court **DENIES** Plaintiff JANE DOE's motion to compel further responses from Defendant JAMAL BROWN to Plaintiff's RFPs (Set One).

Similar to the motion concerning the special interrogatories, Plaintiff's one-paragraph Notice of Motion (the same Notice used for each of the three motions) fails to state whether the motion is directed to any particular RFP or to all of the requests contained in Plaintiff's RFPs (Set One). (See ROA 429.) By contrast, the supporting MP&As (ROA 450) specifically lists only the following requests under the heading "Specific Deficiencies": RFPs, Nos. 3 and 5. The MP&As also vaguely refers generally to "multiple RFPs" and "several RFPs". (ROA 450, at p. 2, lines 21-22.) The accompanying Separate Statement (ROA 419)

however lists Nos. 1-6, 8, 9, 11, and 16-20, and the accompanying Declaration (ROA 421, Exh. A) shows an effort to meet and confer as to the following RFPs: Nos. 1-5, 6, 8, 9, 11, 13, 15-20.

Whether or not the motion is properly directed at only Nos. 3 and 5, or to Nos. 1-5, 6, 8, 9, 11, 13, 15-20, Plaintiff fails to meet her burden of establishing good cause for compelling a further response.

A motion to compel further responses to RFPs “shall” set forth “specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310(b)(1).) To establish “good cause,” the burden is on the moving party to demonstrate both: (1) relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case), and (2) specific facts justifying discovery. (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Arguments made in the moving papers or in a separate statement are insufficient to satisfy this requirement; good cause must be shown by way of admissible evidence, such as by declaration. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.)

Only if good cause is shown by the moving party does the burden shift to the responding party to justify any objections made to document disclosure. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [re interrogatories].)

Plaintiff does not show good cause justifying the production of discovery sought by the RFPs, and good cause is not apparent on the face of the RFPs.

To the extent Plaintiff requests that the court set a hearing under Civil Code section 3295(c), Plaintiff improperly requests affirmative relief for the first time on reply.

As for any request to compel compliance with an agreement to produce documents responsive to RFP Nos. 6, 8, 9, and 11, a separate motion is required. If a responding party fails to permit inspection in accordance

with its agreement to comply with an inspection demand, the demanding party's remedy is to file a motion compelling compliance as agreed pursuant to Code of Civil Procedure Section 2031.320.

The court further notes that Plaintiff does not submit admissible evidence to support her contention that Defendant agreed to produce documents responsive to RFP Nos. 6, 8, 9, and 11.

In sum, the court DENIES Plaintiff's motion to compel further responses to the RFPs.

3. RFAs

The court **DENIES in part, and GRANTS in part**, Plaintiff JANE DOE's motion to compel further responses from Defendant JAMAL BROWN to Plaintiff's RFAs (Set One).

Similar to the above motions, Plaintiff's one-paragraph Notice of Motion (the same Notice used for each of the three motions) fails to state whether the motion is directed to any particular RFA or to all of the requests contained in Plaintiff's RFAs (Set One). (See ROA 429.) By contrast, the supporting MP&As (ROA 452) specifically lists only the following requests under the heading "Specific Deficiencies": RFAs, Nos. 1-3 and 7-16, inclusive. The accompanying Separate Statement (ROA 425) however lists Nos. 1-3, 7, 26-31, inclusive, and the accompanying Declaration (ROA 423, Exh. A) shows an effort to meet and confer as to the following RFPs: Nos. 1-3, and 7-16.

As Plaintiff's Separate Statement does not include RFA Nos. 8-16 or responses thereto, the court DENIES the motion as to RFA Nos. 8-16.

As Plaintiff apparently did not meet and confer as to RFA Nos. 26-31, the court DENIES the motion as to those RFAs.

As to the remaining discovery responses (Nos. 1-3 and 7), the court finds Plaintiff sufficiently met and conferred and such is contained in the supporting separate statement.

Code of Civil Procedure section 2033.220 requires that responses to RFAs be “as complete and straightforward as the information reasonably available to the responding party permits,” and that each response admit so much of the matter involved in the request as is true, deny so much of the matter involved in the request as is untrue, or specify so much of the matter involved as to the truth of which the Responding Party lacks sufficient information or knowledge. (Code Civ. Proc., § 2033.220(a)-(b).) Should the responding party give lack of information or knowledge as a reason for failure to admit all or part of the RFA, the party “shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220(c).)

Pursuant to section 2033.290(a), a party may move for an order compelling a further response to requests for admission if that party deems that an answer to a particular request is evasive or incomplete and/or an objection to a particular request is without merit or too general.

The court finds Defendant’s responses to RFA Nos. 1, 2, 3 and 7 are evasive and incomplete. As such, **the motion is GRANTED as to RFA Nos. 1, 2, 3 and 7.**

No later than 10 days from the hearing, Defendant Brown SHALL provide supplemental verified, code-compliant responses without objection to

- RFA Nos. 1, 2, 3, and 7; and
- Special Interrogatory Nos. 13 and 14.

Re Sanctions: In each of Plaintiff’s three MP&As (ROAs 430, 450 and 452) – but not in Plaintiff’s one Notice of Motion (ROA 429), Plaintiff requests monetary sanctions of \$1,200.00 which she asserts is “at the self-represented rate commonly allowed by courts”. (P’s MP&As (ROAs 430, 450 and 452), each at p. 3.)

		The court finds sanctions are not warranted under the circumstances. Moreover, Plaintiff is self-represented and not apparently an attorney. As such, and as noted by Defendant, fees are not recoverable here as Plaintiff did not apparently incur any such fees. Further, there is apparently no authority for Plaintiff's assertion that courts commonly grant sanctions at a "self-represented rate". In sum, Plaintiff's requests for sanctions are DENIED. Defendant to give notice of all of the above.
11	Blanco vs. Motel 6 Buena Park, CA - Knotts Berry Farm – Disneyland	<u>Demurrer (re Second Amended Complaint)</u> <u>Motion to Strike</u> (Case Management Conference) 1. <u>Demurrer</u> The court SUSTAINS the entire unopposed general demurrer of Defendant BUENA PARK HOTEL, LLC ("Moving Defendant") to the first, third and fourth causes of action in the Second Amended Complaint ("SAC") filed by Plaintiffs SAMUEL BLANCO, JONATHAN BLANCO (a minor), and GRACE BLANCO (a minor) <i>without leave to amend</i>. The SAC asserts seven causes of action against Moving Defendant: (1) battery, (2) negligence, (3) intentional infliction of emotional distress (IIED), (4) fraudulent concealment, (5) private nuisance, (6) public nuisance, and (7) breach of contract. Moving Defendant argues the following: • Plaintiffs fail to plead any intentional act by Defendant to support the first cause of action for battery. • Plaintiff fails to plead any intentional, outrageous act by Moving Defendant to support the third cause of action for IIED.

- The fourth cause of action for fraudulent concealment is not plead with the requisite specificity.

The court agrees that these causes of action remain deficient – i.e., they have the same deficiencies that were raised in prior demurrers to the same causes of action.

Plaintiffs did not file any opposing papers to the demurrer or to the motion to strike and failed to address any of the arguments that Moving Defendant makes, apparently conceding the issues. (See, e.g., *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].)

Accordingly, the court sustains the demurrer to the first, third, and fourth causes of action, without leave to amend.

Moving Defendant to give notice.

2. Motion to Strike

The court **GRANTS** the entire motion to strike of Defendant BUENA PARK HOTEL, LLC (“Moving Defendant”) to certain portions of the Second Amended Complaint (“SAC”) filed by Plaintiffs SAMUEL BLANCO, JONATHAN BLANCO (a minor), and GRACE BLANCO (a minor) ***without leave to amend***.

Moving Defendant moves to strike various allegations relating to punitive damages in paragraphs 29, 32, 35, 38, 44, 45, 46, 47, 48, 50, 51, 53, 55, 56, 57, 58, 59, 62, 64, 65, 67, 76, 79, 81, 82, 83, 84, 85, 92, 96, 98, 99, 103, 105, 108, 110, 114, 115, 117, and Plaintiff’s prayer for punitive damages.

Moving Defendant argues that punitive damages are not available for general negligence and/or breach of contract causes of action. Moving Defendant also argues that Plaintiff's allegations are not sufficient to rise to the level of malice, oppression, or fraud that are necessary to allege punitive damages.

The court agrees that the allegations are insufficient to support a punitive damages request.

The unopposed motion to strike is therefore GRANTED in its entirety.

Plaintiff has had multiple opportunities to amend but failed to cure the deficiencies. Plaintiff failed to file opposing papers or otherwise show that any further amendment would result in stating viable causes of action for battery, IIED, or fraud against Moving Defendant. The court therefore denies leave to amend.

Moving Defendant SHALL answer the remaining portions of the SAC within ten court days.

Moving Defendant to give notice.

3. CMC

The court has reviewed the case file, including case management statements filed by both sides, and hereby issues this case management order. (Cal. Rules of Court, rules 3.722(d) and 3.728.) Although the action is not yet at-issue, it should soon be. As such, the court will set a trial date. The court further notes that Plaintiff failed to file a new and timely case management statement despite the court's order for such. (See 6/26/26 Minute Order.)

The court sets a 4-6 day jury trial for Monday, February 14, 2028, at 8:45 am in Dept. W8. All parties are ordered to comply with the Department's Policies & Procedures and Trial Standing Orders, which are available on the court's public website (www.occourts.org) and inside the department.

		Any outstanding jury fees are due within 10 court days of this order or will be deemed waived. (See Civ. Proc. Code, § 631.) Plaintiff to give notice.
12	Krishnamoorthy vs. The Irvine Company, LLC	<u>Motion for Summary Judgment and/or Adjudication</u> The court CONTINUES Defendants THE IRVINE COMPANY LLC, IRVINE PARK WEST APARTMENTS LLC, and IRVINE MANAGEMENT COMPANY's Motion for Summary Judgment or, in the Alternative, Summary Adjudication to September 4, 2026, at 9:30 am in Dept. W8. In support of their motion, Defendants submit surveillance footage of the incident as Exhibit I to the Declaration of James C. Truxaw (ROA 110) and rely on that footage in support of Defendant's Separate Statement Nos. 14-19. Exhibit I provides only a link to a DropBox folder that the court is unable to access. Similarly, the Dropbox link to the surveillance footage provided by Plaintiffs in their opposition (ROA 183) is also inaccessible to the court. The parties SHALL have five days from this ruling to lodge the surveillance footage referenced in their respective filings on a thumb/flash drive. <i>No further briefing permitted.</i> Defendants are ordered to give notice.
20	Mallett vs. City of Santa Ana	Specially set @ 1:30 pm: <u>Motion for Trial Preference</u> <u>Pitchess Motion</u>

1. Motion for Trial Preference

The court **DENIES** Plaintiff ROSE MARIE MALLETT's motion for a preferential trial setting within 120 days pursuant to Section 36(a) of the Code of Civil Procedure.

Section 36(a) permits a party who is over 70 years of age to petition the court for trial preference, which the court must grant if it makes *both* of the following findings:

- (1) The party has a substantial interest in the action as a whole; and
- (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

In support of the motion, the moving party's attorney may submit the supporting affidavit based upon information and belief as to the medical diagnosis and prognosis of the moving party. (Code Civ. Proc., § 36.5.)

If the court finds a party meets the requirements of section 36(a), it cannot balance conflicting interests of opposing litigants. (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085 [finding trial preference under Section 36 can operate to truncate the discovery rights of other parties].) But courts have recognized that "the due process implications of this approach have not yet been decided." (*Roe v. Superior Court* (1990) 224 Cal.App.3d 642, 643 n. 2; See also *Peters v. Superior Court* (1989) 212 Cal.App.3d 218, 227 [noting but not deciding due process issue potentially raised by mandatory trial preference].)

Defendants oppose the motion, arguing that Plaintiff failed to establish that her health condition warrants a trial preference and that a trial preference would impact Defendants' due process rights. Defendants further argue that Plaintiff's lack of genuine need for a trial preference is evidenced by Plaintiff having withdrawn an earlier motion for a trial preference and by Plaintiff failing to have this motion heard earlier.

Here, Plaintiff is 80 years of age, born on 8/30/45. (Schoening Decl., ¶2, Exh. 3.) Plaintiff, the only Plaintiff in this action, has a substantial interest in this personal injury action.

As to whether Plaintiff's health is such that a preference is *necessary* to prevent prejudice to her interest, Plaintiff's counsel submits a declaration concluding that a trial preference is necessary given Plaintiff's age and health and that he understands Plaintiff has "become depressed", "has little desire to do anything", "is not sleeping well" and has "had memory issues". (Schoening Decl., ¶ 4.) Plaintiff's counsel also states that Plaintiff has been diagnosed with Adjustment Disorder with Depressed Mood. (Schoening Decl., ¶ 5, Exhs. 1 and 2.)

It appears from the documents attached to counsel's declaration that the diagnosis was made on 12/14/25 via a telephone appointment (id., Exh. 1) and that in a prior visit with a physician on 11/14/25, Plaintiff complained of a "10 month history of depressed mood and anhedonia after her son passed away" (id, Exh. 2.)

The court further notes that Plaintiff filed this action on 5/9/25 (well over a year ago) and withdrew a prior motion for trial preference she had filed on 9/10/25 (ROA 23), supported by a declaration of counsel asserting the same ailments. The prior motion was apparently withdrawn so that Plaintiff could add a new defendant – Officer LUIS CASILLAS. (Mov. Pts. & Auth. at p. 3, lines 10-15.)

There is no showing of any change in Plaintiff's health from the time of the prior motion and the filing of the instant motion for a trial preference.

The court finds Plaintiff's showing to be insufficient to show that a preferential trial setting is necessary to avoid prejudicing her interest in this litigation. While the court is sympathetic to Plaintiff's ailments and health conditions, Plaintiff has not established that Plaintiff's health is such that a preference is necessary to prevent prejudicing Plaintiff's interest in this litigation.

As such, the motion is DENIED.

		The scheduled 4/26/27 jury trial remains. Defendant to give notice. 2. Pitchess Motion On 5/8/2026, the court granted in part Plaintiff's motion for Pitchess discovery (as to the issue of excessive force only). The court then set the in-camera review hearing for 8/7/26, which was thereafter continued to 8/14/26 pursuant to the parties' stipulation. (Stip. & Order, filed 5/13/26 [ROA 148].) The parties should therefore be prepared to proceed with the in-camera review hearing at 1:30 pm, on the issue of excessive force only.